

23STCV02925 23STCV02925

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C514%2C08%2F11%2F2026

Source SHA-256: 67054b3704f5b7df74c3abb1dbc932fd4bc9cacd7de9c0788393dde63565452a

Case Number: 23STCV02925 Hearing Date: August 11, 2026 Dept: 514

Anderson v. Williams

23STCV02925

Defendant's Motion for Judgment on the Pleadings or, in the Alternative, to Strike

Tentative Ruling

The Court will call this matter.

The Court's tentative ruling is that the request for judgment on the pleadings is denied and the requests to strike are denied in part and granted in part.

Background

On February 10, 2023, Durand Anderson ("Plaintiff") filed the complaint in this action against Thelma Williams and Does 1 through 10 for (1) breach of warranty of habitability, (2) negligent maintenance of premises, (3) nuisance, (4) breach of quiet enjoyment, and (5) intentional infliction of emotional distress, all arising out of alleged habitability issues with a residence located at 1555 West 80th Street in Los Angeles.

On June 28, 2023, Plaintiff's counsel filed a declaration with the Court stating that Defendant Williams was deceased.

July 3, 2023, Plaintiff amended the complaint

to name Vickie Buie, successor trustee of the Thelma E. Williams Revocable Trust ("Buie"), as Doe 1.

On September 27, 2023, Defendant Buie filed an answer.

On November 17, 2023, Buie filed a cross-complaint against Plaintiff. Plaintiff filed an answer to the cross-complaint on December 5, 2023.

On June 18, 2026, Defendant Buie filed this motion for judgment on the pleadings or, in the alternative, to strike. Plaintiff filed an opposition July 21, and Buie filed a reply on August 4.

Trial is set for August 17, 2026.

Legal Standard

Motion for Judgment on the Pleadings

California practice recognizes two types of motions for judgment on the pleadings.

First, there is a statutory motion. (See Code Civ. Proc., § 438.) A defendant may bring a statutory motion for judgment on the pleadings when "the complaint does not state facts sufficient to constitute a cause of action against that defendant." (Id., subd. (c)(1)(B)(ii).) A statutory motion for judgment on the pleadings must be filed within certain time limits, and it is subject to a statutory meet-and-confer requirement. (Id., subd. (e); Code Civ. Proc., § 439.) The grounds for a statutory motion for judgment on the pleadings must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 438, subd. (d).)

Second, there is a non-statutory motion for judgment on the pleadings, which "may be made at any time either prior to the trial or at the trial itself." (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877; see also Smiley v. Citibank (South Dakota) (1995) 11 Cal.4th 138, 145 fn. 2; Tarin v. Lind (2020) 47 Cal.App.5th 395, 402;

Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

A motion for judgment on the pleadings
is the functional equivalent of a demurrer.

(People ex rel. Harris v. Pac Anchor Transp. (2014) 59 Cal.4th
772, 77; City of Rancho Palos Verdes v. State (2025) 114 Cal.App.5th 13,
23.) “The standard for granting a motion
for judgment on the pleadings is essentially the same as that applicable to a
general demurrer, that is, under the state of the pleadings, together with
matters that may be judicially noticed, it appears that a party is entitled to
judgment as a matter of law.” (Bezirdjian v. O'Reilly (2010) 183
Cal.App.4th 316, 321-322; accord Los Angeles
Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 494; Templo v. State (2018)
24 Cal.App.5th 730, 735; Southern California Edison Co. v. City of
Victorville (2013) 217 Cal.App.4th 218, 227; see also 1 Weil & Brown,
California Practice Guide: Civil Procedure Before Trial [2025] ¶ 7:275.)

Motion to Strike

Under Code of Civil Procedure section
435, “Any party, within the time allowed to respond to a pleading may serve and
file a notice of motion to strike the whole or any part thereof.” (Code Civ.
Proc., § 435, subd. (b)(1).)

Code of Civil Procedure section 436
provides:

“The court may, upon a motion made
pursuant to Section 435, or at any time in its discretion, and upon terms it
deems proper:

(a) Strike out any irrelevant, false,
or improper matter inserted in any pleading.

(b) Strike out all or any part of any
pleading not drawn or filed in conformity with the laws of this state, a court
rule, or an order of the court.”

(Code
Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the

truth of the properly pleaded facts in the complaint or other pleading. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Before a motion to strike is filed, the parties must “meet and confer in person, by telephone, or by video conference.” (Code Civ. Proc., § 435.5, subd. (a).)

Requests for Judicial Notice

Defendant Buie asks the Court to take judicial notice of (1) a County of Los Angeles Certificate of Death stating that Thelma Elrean Williams died on November 27, 2022; and (2) Plaintiff’s Complaint.

Plaintiff asks the Court to take judicial notice of (1) Defendant’s Cross-Complaint and (2) the Doe Amendment naming Defendant Buie as Doe 1.

The requests to take judicial notice of documents in the Court’s file are granted, but Plaintiff had previously filed a declaration with the Court attesting to the death of Defendant Williams.

This fact is not reasonably in dispute.

The request for judicial notice of the death certificate, an official government document, is granted.

Discussion

Motion for Judgment on the Pleadings

Defendant Buie brings this non-statutory motion and moves for judgment on the pleadings as follows: (1) on every cause of action against Defendant Williams on the ground that she died before this action was filed; and (2) on the Fifth Cause of Action (for intentional infliction of emotional distress) on the ground that the complaint fails to state facts sufficient to constitute a cause of action.

Causes of Action Against Williams

Defendant Buie seeks an order granting her motion for judgment on the

pleadings on all causes of action against Defendant Williams. (Mem., at pp. 6-7.) Defendant Buie does not assert that she represents

an estate of Defendant Williams or otherwise has any authority to act on behalf of Defendant Williams. Accordingly, the motion of Defendant Buie to obtain relief on behalf of Defendant Williams is denied.

The Court recognizes that Defendant Williams was never served and in fact died before this action was filed. The Court expects that, at or before the time of trial, Plaintiff will dismiss Defendant Williams.

Fifth Cause of Action (Intentional Infliction of Emotional Distress)

Defendant Buie also seeks an order granting her motion for judgment on the pleadings on the Fifth Cause of Action (for intentional infliction of emotional distress) asserted against her in the complaint.

The elements of a cause of action for intentional infliction of emotional distress ("IIED") are: (1) that the defendant engaged in "extreme and outrageous conduct ... with the intention of causing, or reckless disregard of the probability of causing, emotional distress"; (2) that the plaintiff suffered "severe or extreme emotional distress"; and (3) that the plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051; see also Christensen v. Super. Ct. (1991) 54 Cal.3d 868, 905-906; Colonial Van & Storage, Inc. v. Super. Ct. (2022) 76 Cal.App.5th 487, 506; Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009; CACI No. 1600.)

Conduct is "outrageous" if it "exceed[s] all bounds of that usually tolerated in a civilized community." (Hughes, supra, 46 Cal.4th at p. 1051.) "[M]ere insults" and "other trivialities" are not sufficient. (Ibid.; see also, e.g., Crouch v. Trinity Christian Center (2019) 39 Cal.App.5th 995, 1007.) The conduct must

be directed at the plaintiff or, alternatively, defendant must act with reckless disregard of plaintiff and the probability that the conduct will cause severe emotional distress to plaintiff.

(Christensen,

supra, 54 Cal.3d at pp.

905-906; So v. Shin (2013) 212 Cal.App.4th

652, 671.) Conduct may be considered

outrageous, depending on all of the circumstances, if a defendant "(1) abuses a relation or position which gives [the defendant]

power to damage the plaintiff's interest; (2) knows the plaintiff is

susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the

recognition that the acts are likely to result in illness through mental

distress." (Molko v. Holy Spirit

Ass'n (1988) 46 Cal.3d 1092, 1122; CACI No. 1602.) Outrageous behavior can also occur when a

defendant knows of a dangerous condition, fails to warn about the danger, and

the plaintiff suffers physical harm as a result. (Wilson v. Southern California Edison Co.

(2015) 234 Cal.App.4th 123, 152.)

In the complaint, Plaintiff alleges that he

rented a residential property on West 80th Street in Los Angeles (the "Property");

that Defendants (including Defendant Buie as Doe 1) owned and operated the

Property; and that the Property was "generally unsafe, unsanitary, unhealthy,

uninhabitable, untenable, in a serious state of disrepair, and in gross

violation of building, health and safety laws."

(Compl., ¶¶ 1, 4, 19.) Plaintiff alleges

that he complained of the conditions to Defendants, who fraudulently told him

repairs would be made; no repairs were made. (Compl., ¶ 21.) Plaintiff alleges

that Defendant knew these representations were false and were made for the sole

purpose of exploiting Plaintiff. (Compl., ¶ 22.) Plaintiff alleges that the Property

contained roach infestation, bed bugs, plumbing issues, mold, deteriorated

kitchen floor, faulty electrical, inoperable windows and doors, no cold water,

and no functional heater. (Compl., ¶ 23.) Plaintiff alleges that he and members

of his family became ill with rashes and breathing issues arising from these conditions

of the Property. (Compl., ¶ 23.) Plaintiff

states that Defendant knew of these conditions prior to Plaintiff's tenancy and

failed to disclose them. (Compl., ¶¶ 24-25.) Defendant failed and refused to

make any repairs after Plaintiff's request and report to the Housing Authority

of the County of San Bernardino. (Compl., ¶ 38.) And any repairs that were made after the

Housing Authority issued orders for repairs were delayed and

inadequate/ineffective. (Compl., ¶ 39.) After

Defendants were ordered to correct the conditions of Property, Defendants harassed Plaintiff with the threat of eviction. (Compl., ¶ 40.) Moreover, Plaintiff alleges, Defendants' conduct, including the retaliation and harassment, was based in part on Plaintiff's race. (Compl., ¶¶ 122-126.)

In ruling on a motion for judgment on the pleadings, the Court must accept the allegations in the complaint as true. Taking the allegations in the complaint as true, Plaintiff has alleged sufficient facts to support his Fifth Cause of Action. Defendants' conduct, as alleged, went far beyond a few unkind words or unkept promises.

The motion for judgment on the pleadings on the Fifth Cause of Action is denied.

Motion to Strike

Defendant Buie moves to strike: (1) the allegations of discrimination in paragraphs 5, 122-126, and 123 of the complaint; and (2) the prayer for punitive damages under Civil Code section 1942.5, subdivision (f).

As a threshold matter, the Court notes that a motion to strike is statutory in nature, and Defendant Buie's motion is not timely. (See Code Civ. Proc., § 435, subd. (b)(1).) Under Code of Civil Procedure section 436, however, the Court may make an order striking allegations from a pleading "at any time in its discretion." Given that trial is scheduled to commence soon, and given that Plaintiff has had ample notice and an opportunity to be heard, the Court, in its discretion, will consider Defendant Buie's late motion to strike.

Discrimination Allegations (Paragraphs 5, 122-126, and 133)

Defendant Buie seeks to strike the allegations of discrimination appearing in paragraphs 5, 122-126, and 133 of the complaint. She argues that these allegations are "immaterial," but that is not accurate. Plaintiff brings a cause of action for intentional infliction of emotional distress; Plaintiff alleges (among other things) that he was subject to harassment and retaliation motivated, in part, by his race. The Court must accept these allegations as true in ruling on a motion to strike. And if these allegations are true, the

discrimination issue is material to liability and damages on the intentional infliction of emotional distress cause of action.

Prayer for Punitive

Damages Under Civil Code Section 1942.5, Subdivision (f)

In his complaint, Plaintiff seeks to recover punitive damages under Civil Code sections 1942.5 and 3294. Plaintiff seeks to strike the reference to section 1942.5. Plaintiff does not, however, seek to strike the request for punitive damages under Civil Code section 3294. (Mem., at p. 10.)

The Court begins by noting that there is no provision for punitive damages in subdivision (f) of Civil Code section 1942.5. There is a provision for punitive damages in subdivision (h)(2) of that section, but Plaintiff in his complaint does not plead a cause of action for retaliatory eviction or any other violation of Civil Code section 1942.5.

Accordingly, the motion to strike the reference to section 1942.5, subdivision (f) in the sixth item of the prayer for relief (on page 28, line 13 of the complaint) is granted.

In ordinary circumstances, the Court would grant Plaintiff leave to amend. As trial is scheduled to commence shortly, however, the Court will call this matter to discuss whether Plaintiff seeks leave to amend, which will necessitate some further delay in the trial.

Conclusion

The Court DENIES the motion of Defendant Vickie Buie, successor trustee to the Thelma E. Williams Revocable Trust, for judgment on the pleadings.

The Court DENIES IN PART and GRANTS IN PART the motion of Defendant Vickie Buie, successor trustee to the Thelma E. Williams Revocable Trust, to strike portions of the complaint.

The Court STRIKES the reference to Civil Code

section 1942.5, subdivision (f), on page 28, line 13 of the complaint.

The Court otherwise DENIES the motion to strike.

The Court WILL CALL this matter regarding whether Plaintiff seeks leave to amend.

Moving party is ordered to give notice.